

26STCV11195 26STCV11195

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Case Number: 26STCV11195 Hearing Date: August 31, 2026 Dept: 408

Defendants Alvah Contracting, LLC, Alvah Group, Inc., City of Los Angeles's Motion to Strike Portions of Plaintiff Peter U. Gion's Complaint is DENIED in part and GRANTED in part.

I.

BACKGROUND

On April 8, 2026, Plaintiff Peter U. Gion ("Plaintiff") filed a complaint against Defendants Alvah Contracting, LLC, Alvah Group, Inc., City of Los Angeles ("Defendants") alleging causes of action for:

1. Age

Discrimination;

2. Disability

Discrimination; and

3. Waiting-Time

Penalties.

On July 1, 2026, Defendants filed this Motion to Strike. On August 18, 2026, Plaintiff filed an opposition. On August 24, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

Pursuant to Code of Civil Procedure section

436, “the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) The grounds for a motion to strike must “appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

III.

DISCUSSION

Defendants move to strike the request for punitive damages against Defendants Alvah Contracting, LLC and Alvah Group, Inc. (“Alvah Defendants”) and the request for waiting time penalties against Defendant City of Los Angeles (“City”) from Plaintiff’s complaint. (Motion, at p. 3.)

1.

Punitive
Damages

Punitive damages may be awarded in an action for the breach of an obligation not arising from contract upon clear and convincing evidence that a defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)

Under Civil Code section 3294(b), punitive damages against a corporation require “the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

The complaint alleges that, on February 10, 2025, Defendants hired Plaintiff as an Electrical Craft Helper for Los Angeles Department of Water and Power projects. (Complaint, ¶¶ 16-17.) On February 18, 2025, Plaintiff suffered a workplace accident and was immediately dismissed by Defendants. (Id., ¶ 24.) The complaint further alleges that General Foreman Rod Wilson (“Wilson”) sent Plaintiff a text message stating “you have to ask yourself can you do XYZ with your 59 year old

rotor cuffs? Just being real.” (Id., ¶¶ 26.) Plaintiff alleges that such conduct demonstrates that Plaintiff’s termination was motivated by an age-discrimination animus. (Id., ¶ 27.)

Defendants

argue that

Plaintiff identifies a single person, Wilson, engaging in conduct that allegedly warrant punitive damages and fails to allege that Wilson is an officer, director, or managing agent of Alvah Defendants to support punitive damages under Section 3294(b). (Motion, at pp. 5-6.)

The court notes that Plaintiff alleges that Wilson exercised supervisory authority over Plaintiff, including the authority to direct Plaintiff’s work and to terminate Plaintiff’s employment. (Complaint, ¶ 21.) At the pleading stage, particularly before discovery, plaintiffs typically lack access to the internal corporate structure, the identities of specific decision-makers, and the details of their authority and decisions. Requiring plaintiffs to plead evidentiary details about which employees hold what titles and exercise what scope of authority before any discovery would effectively bar all punitive damages claims against corporations at the pleading stage. The court finds that Plaintiff’s allegations regarding Wilson are sufficient to meet the requirements of Section 3294(b) at the pleading stage.

Accordingly,

the motion is denied as to punitive damages.

2. Waiting Time Penalties

Defendants seek to strike Plaintiff’s request for waiting time penalties against the City arguing that the City is exempt from such penalties under Labor Code section 220(b). (Motion, at pp. 6-7.)

In opposition, Plaintiff concedes to striking the request for punitive damages from the complaint. (Opp., at pp. 1-2.)

Accordingly,

the motion is granted as to waiting time penalties.

IV.

CONCLUSION

Defendants Alvah Contracting, LLC, Alvah Group,
Inc., City of Los Angeles's Motion to Strike Portions of Plaintiff Peter U.
Gion's Complaint is DENIED in part and GRANTED in part.